

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

BLANCA SIERRA, as Administratrix of the Estate of) Index No.:
DENIS REYES, and on behalf of the distributees of)
DENIS REYES,)

Plaintiffs,)

-against-)

POLICE OFFICER ESCALANTE, BADGE #1602,)
POLICE OFFICER MCDERMOTT, BADGE #10048,)
POLICE OFFICERS JOHN DOES 1-20, police officers)
of the New York City Police Department, the identity)
and number of whom is presently unknown,)
individually and in their official capacity as New York)
City Police Officers, CITY OF NEW YORK and NEW)
YORK CITY POLICE DEPARTMENT,)

Defendants.)

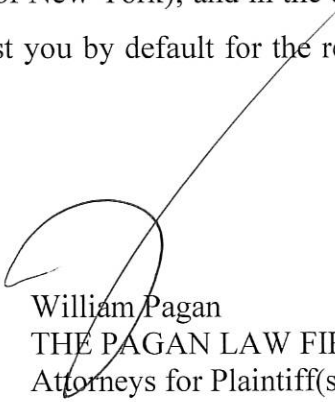
SUMMONS

Plaintiff designates BRONX COUNTY as the place
for trial. The basis of venue is place of occurrence.

TO THE ABOVE-NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiffs' attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 8, 2017


William Pagan
THE PAGAN LAW FIRM, P.C.
Attorneys for Plaintiff(s)
Office & P.O. Box Address:
805 Third Ave, Suite 1205
New York, New York 10022
(212) 967-8202

Defendants' address:
1 Centre Street
New York, New York

POLICE OFFICER ESCALANTE, BADGE #1602

1 Police Plaza

New York, New York

POLICE OFFICER MCDERMOTT, BADGE #10048

1 Police Plaza

New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

BLANCA SIERRA, as Administratrix of the Estate of) Index No.:
DENIS REYES, and on behalf of the distributees of)
DENIS REYES,)

Plaintiffs,)

-against-)

POLICE OFFICER ESCALANTE, BADGE #1602,)
POLICE OFFICER MCDERMOTT, BADGE #10048,)
POLICE OFFICERS JOHN DOES 1-20, police officers)
of the New York City Police Department, the identity)
and number of whom is presently unknown,)
individually and in their official capacity as New York)
City Police Officers, CITY OF NEW YORK and NEW)
YORK CITY POLICE DEPARTMENT,)

Defendants.)

VERIFIED COMPLAINT

Plaintiff, by her attorneys, THE PAGAN LAW FIRM, P.C., complaining of the
defendants, respectfully alleges as follows:

PARTIES AND JURISDICTION

1. At all times hereinafter mentioned, plaintiff was and is a resident of the County of
Bronx, City and State of New York.

2. At all times hereinafter mentioned defendant City of New York ("CITY") was
and is a municipal corporation was and is a municipal corporation, duly authorized and existing
under and by virtue of the laws of the State of New York and was and is responsible for the
policies, procedures, and practices implemented through its various agencies, agents,
departments, and employees, including the defendant New York City Police Department
("NYPD") and was the public employer of defendants POLICE OFFICER ESCALANTE,
BADGE #1602, POLICE OFFICER MCDERMOTT, BADGE #10048 and POLICE OFFICERS
JOHN DOES 1-20 ("Police Officers").

3. At all times hereinafter mentioned defendant NYPD was and is a department of defendant CITY and was, is and has been responsible for the promulgation and implementation of police policies, procedures, and practices in New York City.

4. At all times hereinafter mentioned defendants POLICE OFFICER ESCALANTE, BADGE #1602, POLICE OFFICER MCDERMOTT, BADGE #10048 and POLICE OFFICERS JOHN DOES 1-20 ("defendant Police Officers") were and, upon information and belief, remain as New York City Police Officers, hired, trained and retained by defendants to implement its police policies, procedures, and practices.

5. This court has jurisdiction pursuant to 42 U.S.C. §§ 1983, 1985, 1986, and 1988; and the New York State Constitution, Article(s) I and the Laws of the State of New York.

6. That on or about the 16th day of July 2015, plaintiff caused a Notice of Claim and Intention to Sue to be served upon defendant CITY; and that such notice was served within ninety (90) days from the date of the occurrence which is the subject of this action.

7. That more than thirty (30) days have elapsed since the presentation of said Notice of Claim; that said claim remains unadjusted, uncompromised, unpaid and unsettled; and that defendant has wholly failed, omitted, neglected and refused to make any adjustment, compromise, payment or settlement thereof.

8. That on or about November 9, 2015, defendant, CITY conducted an oral examination of plaintiff, pursuant to 50-h of the General Municipal Law.

9. That more than thirty (30) days have elapsed since said oral examination and defendant has not requested nor conducted a physical examination of plaintiff, pursuant to General Municipal Law sec. 50-h.

10. That plaintiff has duly complied, so far as is possible, with all conditions precedent to the bringing of this action.

11. That this action is being commenced within one (1) year and ninety (90) days from the date of the occurrence which is the subject matter thereof.

12. That all times hereinafter mentioned defendants acted towards plaintiff's decedent, DENIS REYES, under color of the statutes, ordinances, customs, and usage of the Laws of the United States, Laws of the State of New York, Laws of the City of New York and systemic customs, rules, regulations of the New York City Police Department.

FACTS

13. That all times hereinafter mentioned, defendants, CITY AND NYPD and each of them, had an affirmative duty to properly hire, train and supervise their employees, and more particularly defendant Police Officers so as to prevent said employees from exercising improper and excessive force, deprivation of rights and injuring and killing others, particularly plaintiff's decedent herein.

14. That all times hereinafter mentioned, plaintiff and plaintiff's decedent were lawful residents of the premises known and designated as 274 East 194th Street, Apt. 2, Bronx, New York, in the Borough and County of Bronx, City and State of New York.

15. That on or about the 14th day of May 2015, at approximately 4:00 – 5:00 pm plaintiff, plaintiff's decedent and plaintiff's other son/decedent's brother were lawfully in and upon said premises and apartment.

16. That at said time and place defendant Police Officers, under color of federal, state and municipal authority and law, assaulted, brutalized and killed plaintiff's decedent in the presence of his brother in and upon said premises and apartment.

17. That at no time during the course of the assault and brutalization did plaintiff's decedent pose a threat to the safety of defendant Police Officers or the public.

18. That defendant Police Officers were acting in concert when they attacked decedent and were engaged in a joint venture, assisting each other in performing the assault and

brutalization described herein and lending their physical presence and support and the authority of their offices to one another without any intervention by any defendant Police Officer to prevent said attack and brutalization.

**AS AND FOR A FIRST CAUSE OF ACTION FOR VIOLATIONS OF
42 U.S.C. §1983: ILLEGAL DETENTION AND SEARCH**

19. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

20. That on or about the 14th day of May 2015, at approximately 4:00 – 5:00 pm and for some time prior thereto, defendants CITY and NYPD and each of them, breached, violated and disregarded their affirmative duty, by causing, suffering, permitting and allowing improper supervision of said employees, and more particularly defendant Police Officers, thereby allowing injuries to and the killing of, plaintiff's decedent and by causing, suffering, permitting and allowing defendant Police Officers to assault, brutalize, and kill plaintiff's decedent, under color of federal, state and municipal authority, and depriving plaintiff's decedent of his constitutional rights, immunities and privileges.

21. That at said time and place, while plaintiff's decedent was in the exercise of his rights as a citizen, he was illegally detained, searched, assaulted, brutalized and killed by defendant Police Officers.

22. At all times relevant herein, the conduct of all defendants was subject to 42 U.S.C. §§ 1983, 1985, 1986, and 1988.

23. That acting under the color of law, defendant Police Officers worked a denial of plaintiff's decedent's rights, privileges and/or immunities secured by the United States Constitution and/or Federal law, and/or New York State Law and New York City Law to wit,

(a) by depriving Plaintiff's decedent of his liberty without due process of law, by taking him into custody and holding him there against decedent's will;

(b) by making an unreasonable search and seizure of decedent without due process of law;

(c) by conspiring for the purpose of impeding and hindering the due course of justice, with intent to deny decedent equal protection of laws;

(d) by refusing or neglecting to prevent such deprivations and denials to plaintiff's decedent, thereby depriving him of his rights, privileges, and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States;

(e) by causing decedent's demise.

24. That at said time and place there was no warrant for the arrest of plaintiff's decedent and the attempted arrest was without reasonable grounds for said defendant Police Officers to believe plaintiff's decedent had committed an offense and defendant Police Officers knew they were without probable cause to arrest plaintiff's decedent.

25. That at said time and place, no complaint, information, or indictment was sworn against plaintiff's decedent alleging offenses occurring prior to the moment defendant Police Officers attacked plaintiff's decedent, brutalizing and killing him.

26. That as a result of the concerted unlawful and malicious arrest by defendant Police Officers, plaintiff's decedent was deprived of both his liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded, in violation of the Fourth, Fifth, Eighth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. sec. 1983, 1985, 1986, and 1988.

WHEREFORE, Plaintiff demands judgment for the illegal detention, assault, brutalization and killing of decedent against all the Defendants jointly and severally, for actual, general, special, compensatory damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in excess of jurisdictional limits of all

lower courts plus interest, costs, and disbursements, including attorney's fees, and such other relief deemed to be just and equitable.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
VIOLATIONS OF 42 U.S.C. §1983: CONSPIRACY**

27. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

28. As a result of their concerted unlawful and malicious conspiracy of defendants Police Officers, Plaintiff's decedent was deprived of both his liberty without due process of law and his right to equal protection of the laws, was subjugated to cruel and unusual punishment and an illegal search and seizure, and the due course of justice was impeded, in violation of the Fourth, Fifth, Eighth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. §§1983 and 1985.

WHEREFORE, Plaintiff demands judgment for the illegal detention, assault, brutalization and killing of decedent against all the Defendants jointly and severally, for actual, general, special, compensatory damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements, including attorney's fees, and such other relief deemed to be just and equitable.

**AS AND FOR A THIRD CAUSE OF ACTION FOR VIOLATION OF 42 U.S.C. §1983
and 1988: REFUSING OR NEGLECTING TO PREVENT THE ILLEGAL DETENTION
AND KILLING OF PLAINTIFF'S DECEDENT**

29. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

30. That at all times hereinafter mentioned, defendant Police Officers were acting under the direction and control of Defendants CITY and NYPD and acting under color of law and pursuant to official policy or custom of defendants CITY and NYPD.

31. That at all times hereinafter mentioned, defendants CITY and NYPD had actual knowledge that defendant Police Officers were unfit to be and remain as police officers.

32. That at all times hereinafter mentioned, defendants CITY and NYPD had determined that defendant Police Officers were unfit to be police officers by virtue of testing and/or prior conduct and actions of said Police Officers.

33. That despite this knowledge, defendants CITY and NYPD knowingly, recklessly, and/or with gross negligence hired, retained, armed and set loose defendant Police Officers upon the general public.

34. That defendants CITY and NYPD knowingly, recklessly, and/or with gross negligence failed to instruct, supervise, control, monitor and discipline defendant Police Officers on a continuing basis, to refrain from:

(a) unlawfully and maliciously harassing a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities,

(b) unlawfully and maliciously detaining, imprisoning and killing a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities,

(c) conspiring to violate the rights, privileges, and immunities guaranteed to Plaintiff's decedent by the Constitution and laws of the United States and the laws of the State and City of New York; and

(d) otherwise depriving Plaintiff's decedent of his constitutional and statutory rights, privileges, and immunities.

35. Defendants CITY and NYPD knew or, had they diligently exercised their duties to instruct, supervise, control, monitor and discipline defendant Police Officers on a

continuing basis, should have known that the wrongs conspired to be done, as heretofore alleged, were about to be committed. Defendants CITY and NYPD and some or all of defendant Police Officers had the power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and knowingly, recklessly, and/or with gross negligence failed or refused to do so.

36. Defendants CITY and NYPD directly or indirectly, under color of law, approved or ratified the unlawful, deliberate, malicious, reckless, and wanton conduct of defendant Police Officers heretofore described.

37. As a direct and proximate cause of the negligent and intentional acts of Defendants CITY and NYPD as set forth above, Plaintiff's decedent suffered physical injury, severe mental anguish, fear of impending death and death in connection with the deprivation of his constitutional and statutory rights guaranteed by the Fifth and Fourteenth Amendments of the Constitution of the United States and protected by 42 U.S.C. §1983, 1985, 1986, and 1988.

WHEREFORE, Plaintiff demands judgment for the illegal detention, assault, brutalization and killing of decedent against all the Defendants jointly and severally, for actual, general, special, compensatory damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements, including attorney's fees, and such other relief deemed to be just and equitable.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR VIOLATION
OF 42 U.S.C. §1983: RACIAL DISCRIMINATION AND PROFILING**

38. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

39. That at all times hereinafter mentioned, Defendant Police Officers were acting under the direction and control of Defendants CITY and NYPD and acting under color of law and pursuant to official policy or custom of defendants CITY and NYPD.

40. That at all times hereinafter mentioned decedent was a member of a racial minority.

41. That at all times hereinafter mentioned decedent was singled out, illegally detained, beaten and killed by defendant Police Officers because he was of a racial minority.

42. That at all times hereinafter mentioned defendant Police Officer's actions were based upon decedent's status as a member of a racial minority.

43. That at all times hereinafter mentioned, defendants CITY and NYPD knew of and ratified the conduct of defendant Police Officers and other members of the Police and that such behavior was the custom and practice of defendant NYPD regarding racial minorities.

44. As a direct and proximate cause of the acts of Defendants conduct as set forth above, Plaintiff's decedent suffered physical injury, severe mental anguish, fear of impending death and death in connection with the deprivation of his constitutional and statutory rights guaranteed by the Fourth, Fifth, Eighth and Fourteenth Amendments of the Constitution of the United States and protected by 42 U.S.C. §1983.

WHEREFORE, Plaintiff demands judgment for the illegal detention, assault, brutalization and killing of decedent against all the Defendants jointly and severally, for actual, general, special, compensatory damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements, including attorney's fees, and such other relief deemed to be just and equitable.

**AS AND FOR A FIFTH CAUSE OF ACTION: VIOLATION OF NEW YORK STATE
CONSTITUTION, ARTICLE I: INTERFERENCE WITH RIGHTS AND
PRIVELEDGES, RIGHT TO A TRIAL BY JURY, ILLEGAL DETENTION, ILLEGAL
SEARCH, ASSAULT, BATTERY, EQUAL PROTECTION, INTENTIONAL
INFLICTION OF EMOTIONAL DISTRESS AND HOMICIDE**

45. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

46. At all times relevant herein, the conduct of all Defendants was subject to the New York State Constitution Article I. That Defendants interfered with Plaintiff's decedent's exercise and enjoyment of his rights -- e.g., her decedent's rights to liberty, due process, equal protection, trial by jury, as well as Plaintiff's decedent's right to avoid illegal detention, assault and battery, and particularly and among others, her decedent's right to life, all secured by the state and federal constitutions or laws of the United States and/or the State of New York.

47. That under color of state, Plaintiff's decedent's liberty was taken, he was assaulted, subjected to battery, illegally detained, deprived of due process and equal protection, and denied a trial by jury. As a result, Plaintiff's decedent was deprived of his ultimate right - his life.

48. As a direct and proximate result of the conduct of the Defendants, Plaintiff's decedent was intimidated, put in severe anxiety continuing and until he was summarily killed by defendant Police Officers while acting under the color of state.

WHEREFORE, Plaintiff demands judgment for the illegal detention, assault, brutalization and killing of decedent against all the Defendants jointly and severally, for actual, general, special, compensatory damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements, including attorney's fees, and such other relief deemed to be just and equitable.

**AS AND FOR A SIXTH CAUSE OF ACTION: MUNICIPAL LIABILITY FOR
CONSTITUTIONAL VIOLATIONS - *MONELL* CLAIM
AGAINST THE CITY OF NEW YORK- 42 U.S.C. §1983**

49. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

50. Defendant CITY directly caused the constitutional violations suffered by Plaintiff's decedent, and is liable for the damages suffered by Plaintiff's decedent and his distributees as a result of the conduct of the defendant Police Officers. The conduct of the defendant Police Officers was a direct consequence of policies and practices of Defendant CITY.

51. At all times relevant to this complaint Defendant CITY, acting through the NYPD, had in effect policies, practices, and customs that condoned and fostered the unconstitutional conduct of the defendant Police Officers, and were a direct and proximate cause of the damages and injuries complained of herein.

52. Defendant CITY knew or should have known of the defendant Police Officers' propensity to engage in misconduct of the type alleged herein. Upon information and belief, defendant CITY was aware of several complaints of police misconduct involving the use of excessive force against racial minorities by members of the NYPD. Despite its knowledge of such incidents of prior misconduct, defendant CITY failed to take remedial action including disciplining defendant Police Officers.

53. It was the policy and/or custom of defendant CITY to inadequately and improperly investigate complaints of misconduct, and acts of misconduct were instead tolerated by the CITY and left unpunished.

54. It was the policy and/or custom of defendant CITY to inadequately train, supervise and discipline its police officers, including the defendant police officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers.

55. As a result of the above described policies and customs, police officers of the CITY, including the defendant police officers, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

56. The wrongful policies, practices, customs and/or usages complained of herein, demonstrated a deliberate indifference on the part of policymakers of defendant CITY to the constitutional rights of persons within the city, and were the direct and proximate cause of the violations of Plaintiff's decedent's rights alleged herein.

WHEREFORE, Plaintiff demands judgment for the illegal detention, assault, brutalization and killing of decedent against all the Defendants jointly and severally, for actual, general, special, compensatory damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements, including attorney's fees, and such other relief deemed to be just and equitable.

57. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

58. Defendant Police Officers, while acting as agents and employees for Defendant CITY in their capacity as police officers for defendant CITY owed a duty to Plaintiff's decedent to perform their police duties without the use of excessive force. Defendant Police Officers' use of force upon Plaintiff decedent, when Plaintiff's decedent was unarmed and did not pose a

threat of death or grievous bodily injury to any police officer constitutes negligence for which Defendant Police Officers are individually liable.

59. Defendant Police Officers' use of force upon Plaintiff's decedent when they had no lawful authority to arrest Plaintiff's decedent or to use force against him constitutes negligence for which defendant Police Officers are individually liable.

60. As a proximate result of defendant Police Officers' negligent use of excessive force, Plaintiff's decedent sustained physical and emotional pain and suffering, fear of impending death and death.

WHEREFORE, Plaintiff demands judgment for the illegal detention, assault, brutalization and killing of decedent against all the Defendants jointly and severally, for actual, general, special, compensatory damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements, including attorney's fees, and such other relief deemed to be just and equitable.

**AS AND FOR AN EIGHTH CAUSE OF ACTION: RESPONDEAT SUPERIOR
LIABILITY OF THE CITY OF NEW YORK FOR STATE LAW VIOLATIONS
COMMON LAW CLAIM**

61. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

62. The conduct of defendant Police Officers alleged herein occurred while they were on duty and in uniform, in and during the course and scope of their duties and functions as a New York City police officers, and while they were acting as an agents, officers, servants and employees of Defendant CITY. As a result, Defendant CITY is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior.

WHEREFORE, Plaintiff demands judgment for the illegal detention, assault, brutalization and killing of decedent against all the Defendants jointly and severally, for actual, general, special, compensatory damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements, including attorney's fees, and such other relief deemed to be just and equitable.

**AS AND FOR A NINTH CAUSE OF ACTION: NEGLIGENT SUPERVISION,
RETENTION AND TRAINING COMMON LAW CLAIM**

63. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

64. Defendant CITY negligently trained, retained, and supervised defendant police Officers. The acts and conduct of defendant Police Officers were the direct and proximate cause of injury and damage to Plaintiff's decedent and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

65. As a result of the foregoing, Plaintiff's decedent was deprived of his liberty, was subjected to great physical and emotional pain and suffering, fear of impending death and death and was otherwise damaged and injured.

WHEREFORE, Plaintiff demands judgment for the illegal detention, assault, brutalization and killing of decedent against all the Defendants jointly and severally, for actual, general, special, compensatory damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements, including attorney's fees, and such other relief deemed to be just and equitable.

AS AND FOR A TENTH CAUSE OF ACTION: DISTRIBUTEES LOSS

66. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

67. That plaintiff's decedent, is survived by his children. Plaintiff's decedent was a diligent, industrious and loving father who showed great affection to his children and made financial contributions toward their household and as a result of defendants' negligence, plaintiff's decedent's distributees have lost the support, companionship and services of decedent.

68. That plaintiff's decedent was an able-bodied man capable of employment and would have earned monies in the future if still living; and that he would have been employed and would have made financial contributions to his children, which financial contributions have been lost by reason of his death.

69. That plaintiff's decedent was at the time of his death young and in good health; and plaintiff is informed and believes that her decedent had a considerable life expectancy and, had he not been killed, would have continued to be employed and made financial contributions to his children for a considerable time in the future.

WHEREFORE, Plaintiff demands judgment for the illegal detention, assault, brutalization and killing of decedent against all the Defendants jointly and severally, for actual, general, special, compensatory damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements, including attorney's fees, and such other relief deemed to be just and equitable.

AS AND FOR AN ELEVENTH CAUSE OF ACTION

70. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

71. That immediately prior to and during said occurrence, decedent, was completely aware of danger and impending injury and death; and as a result of defendants' negligence, sustained severe personal injuries and consciously suffered excruciating pain, mental anguish, and awareness and fear of impending death, until the time he expired.

72. That as a direct result of defendants' negligence, plaintiff's decedent sustained severe injuries, resulting in great physical and mental pain and suffering from the time of the occurrence until he died there from a short time thereafter.

WHEREFORE, Plaintiff demands judgment for the illegal detention, assault, brutalization and killing of decedent against all the Defendants jointly and severally, for actual, general, special, compensatory damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements, including attorney's fees, and such other relief deemed to be just and equitable.

AS AND FOR A TWELFTH CAUSE OF ACTION

73. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

74. That as a result of the negligence of defendants, plaintiff has expended and/or became obligated for the costs of the funeral expenses and burial of the decedent.

WHEREFORE, Plaintiff demands judgment for the illegal detention, assault, brutalization and killing of decedent against all the Defendants jointly and severally, for actual, general, special, compensatory damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements, including attorney's fees, and such other relief deemed to be just and equitable.

AS AND FOR A THIRTEENTH CAUSE OF ACTION: ASSAULT AND BATTERY

75. Plaintiff re-alleges and incorporates by reference the allegations set forth in each preceding paragraph as if fully set forth herein.

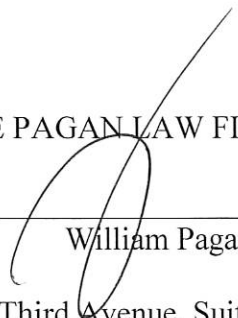
76. That at said time and place defendant Police Officers, and each of them, assaulted, battered, brutalized and killed plaintiff's decedent without cause.

77. That plaintiff's decedent never consented to such intentional conduct.

WHEREFORE, plaintiff demands judgment against the defendants in the First through Twelfth cause of Action, against all the Defendants jointly and severally, for actual, general, special, compensatory damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in excess of jurisdictional limits of all lower courts plus interest, costs, and disbursements, including attorney's fees, and such other relief deemed to be just and equitable.

Dated: New York, New York
July 28, 2016

THE PAGAN LAW FIRM, P.C.

By: 
William Pagan

805 Third Avenue, Suite 1205

THE PAGAN LAW FIRM, P.C.

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK)ss.:

I, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am a partner with the law firm of THE PAGAN LAW FIRM, P.C., the attorneys of record for the plaintiff in the within action; I have read the foregoing

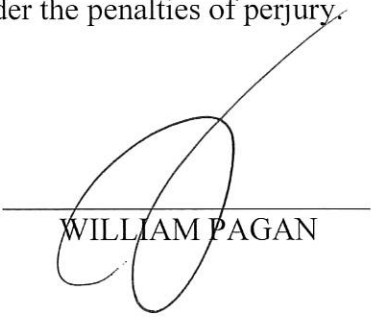
SUMMONS AND COMPLAINT

and know the contents thereof; the same is true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not by plaintiff is that deponent maintains offices outside the County in which plaintiff resides.

The grounds of my belief as to all matters not stated upon my own knowledge, are as follows: entire file maintained in your affirrant's offices; investigations, etc.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
May 8, 2017



WILLIAM PAGAN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

BLANCA SIERRA, as Administratrix of the Estate of	)	Index No.:
DENIS REYES, and on behalf of the distributees of	)	
DENIS REYES,	)	
	)	
Plaintiffs,	)	
	)	
-against-	)	
	)	
	)	
POLICE OFFICER ESCALANTE, BADGE #1602,	)	
POLICE OFFICER MCDERMOTT, BADGE #10048,	)	
POLICE OFFICERS JOHN DOES 1-20, police officers	)	
of the New York City Police Department, the identity	)	
and number of whom is presently unknown,	)	
individually and in their official capacity as New York	)	
City Police Officers, CITY OF NEW YORK and NEW	)	
YORK CITY POLICE DEPARTMENT,	)	
	)	
Defendants.	)	

SUMMONS AND VERIFIED COMPLAINT

THE PAGAN LAW FIRM, P.C.
Attorney for Claimant(s)
805 Third Avenue, Suite 1205
New York, NY 10022
(212) 967-8202